

Introduction:

Islamic Concept of Marriage

According to Islamic teachings when a man and a woman enter into the bond of marriage through NIKAH when they make an agreement to live for the whole life together. It is essential that every new marriage is announced publically and in the presence of witnesses so that it is known to everyone that a new couple has been formed. The main objective of this relationship is to bless both husband and wife with the wealth of love and peace through each other. Both of them are apparel of each other. Both have equivalent rights and duties towards each other except at one stage when man as a husband has an edge upon woman for being the head of family. On the other side he is more responsible than woman as he has to afford all the expenses of his wife and children.

Purpose of Marriage:

A man and a woman get their sexual relationship legalized through marriage as any such contact outside the bond of marriage is disallowed by Islam.

وَلَا تَقْرَبُوا الزَّانِيَ إِنَّهُ كَانَ فَحِشَةً وَسَاءَ سَبِيلًا

The Quran Says: “You shall not draw near to adultery, for it is foul and its way is evil.” (17:32)

Essential Conditions of a Marriage:

1. Mutual Consent of man and woman.
2. Maher (dower) must be paid to the woman.
3. The relationship must be permanent.
4. It must be announced publically.

مُحْصَنَاتٍ غَيْرِ مُسَفِّحَاتٍ وَلَا مُتَّخِذَاتِ أَخْدَانٍ ۖ

“Marry them, so that they should be honorable and chaste.” (Al-Nisa-4:25)

Relationships prohibited for Nikah:

1. Lineage:
2. Fosterage:
3. Marriage:

A man is disallowed to marry his mother, daughter, sister, maternal and paternal aunts, nieces, foster mothers and daughters-in-law. Besides this a man is not allowed to marry two sisters or an aunt and her niece (paternal and maternal both) at the same time. A Muslim man cannot marry a pagan woman but he may marry a Christian or a Jew woman if she is chaste.

Marriage with People of the Book:

As Allah says in the Quran for men that

“(All) good things have this day been made lawful to you. The food of those to whom the Book was given is lawful to you and yours to them. Lawful to you are the free believing women and the free women from among those who were given the Book before you, provided that your

give them their dowries and live in honour with them, neither committing fornication nor taking them as mistresses." (Al-Maida-5:5)

For women, Allah says

"They (Muslim women) are not lawful to the infidels; nor are the infidels lawful to them". (Al Mumtahana-60:10) "

The Nature of Ideal relationship between a husband and wife:

Allah declared husband and wife as a covering for each other:

"They are apparel to you as you are apparel to them." (2:187)

clothing

clothing

"Women shall with justice have rights normally similar to those exercised against them."
(2:228)

Special duties of a man:

A man cannot:

“O believers, it is unlawful for you to ^①inherit the women of your deceased kinsmen against their will, or to ^②bar them from re-marriage, in order that you may force them to get a part of what you have given them, ^(wealth) unless they be guilty of a proven crime (adultery). ^{A man must} Treat them with kindness; for even if you do dislike them, it may well be that you may dislike a thing which Allah has meant for your own good.” (Al-Nisa-4:19)

“It is more pious that he (man) should forego it (his rights). Do not forget to show kindness to each other. Allah observes your actions.” (Al-Baqara-2:237)

Special duties of a woman:

Good women are obedient. They guard the secrets of family as Allah guards the secrets of Human beings (Al-Nisa 4:34)

Who is the head of the family?

“Men (as husbands) are Qawwam over women because Allah has made the one superior to the others (at times man and at times woman) and because (in this situation) they spend their wealth to maintain the family”. (Al-Nisa-4:34)

“Wives shall with justice have rights similar to those exercised against them; although husbands have an edge above them (as Qawam).” (Al-Baqara-2:228)

Husbands and wives have rights over each other. Husbands have a degree of responsibility over their wives. This does not mean superiority but rather a role of protection, care and financial responsibility.

What is Dower?

Dower is, in fact the amount paid by a man with a promise of taking lifelong responsibilities to the woman entering into the bond of marriage with him as an acknowledgement of the

submission on her part in terms of body and will. Islam has determined this amount as a token that the woman may utilize it as and where she desires freely and conveniently.

The Quran directs that this amount should be determined keeping in view the social and financial conditions (Al-Nisa-4, 24-25). However, this amount should be handsome enough to grant her sense of security.

It can be decided mutually whether the amount of dower would be paid immediately at the time of marriage or a part of it would be paid afterwards on the demand of his wife. Later, the wife may surrender a part of the dower if she desires (Al-Baqara-2, 229-237).

1. Divorce: Husband will pay total amount of dower.
2. *Khula*: Depends on their mutual consent.
3. Divorce Before marriage: Half dower must be given.

Is a woman free to marry a man of her choice?

Quran declares marriage a free and solid contract between two wise persons having an insight into the matter. They have to live together and accept all responsibilities. Hence, they should be acknowledged free and independent in the accomplishment of this strong contract.

- ① When a woman is divorced or has become a widow. Allah has commanded that she has full right to marry again after their waiting period is over.
- ② When a husband divorces his wife twice, he cannot re-marry her until she has married another man & been divorced by him.

"Abu Huraira narrates the Prophet's saying that, the marriage of a widow should not be arranged without her consolation and an unmarried girl should also be asked for permission regarding her marriages". The companions of the Prophet requested him for further clarification of the nature of the permission (For example if an unmarried girl cannot utter the word „yes“ due to shyness). The Prophet told that her silence means that she has no objection". (The Bukhari: kitabun Nikah)

- ① A married woman has full authority over her marriage.
- ② A virgin must be asked for permission to marry.
- ③ A father must seek his daughter's permission to marry her off.

"A woman came to the Prophet and said that her father had made her marry the man she disliked. The Prophet told her father that he had no right to make her marriage. He allowed the girl to marry the man of her choice." (Nasb-ul Raiah Kitab ul Nikah).

Polygamy

- ① A man can marry up to a maximum of four women and only if he can treat all of them equally.
- ② This is allowed because in battle of Uhud, many sahabas were killed. They left behind widows, orphans, and properties. To provide support to them, this practice was allowed.

"(Believers) if you fear that you cannot treat orphans (as a result of Battle of Uhud) with fairness, then you may marry such women (these widowers) as seem good to you: two, three or four of them. But if you fear that you cannot do justice, marry only one or those you possess." (Al-Nisa-4:3).

But perfect justice is impossible as a man may try but emotional fairness is out of his hands. Allah warns against treating one wife well while ignoring others. Even if complete fairness is impossible, a husband must fulfill his responsibilities because if he does try sincerely he will find Allah to be merciful.

"In no way you can treat your wives in a just manner, even though you may wish to do that. Do not set yourself altogether against any of them, leaving her, as it were, in suspense. If you do what is right and guard yourself against evil, (you will find) Allah is Forgiving and Merciful". (Al-Nisa- 4:129).

③ Prophet married more than 4 due to political reasons.

① He married first for love.

② After death of first wife, he married again for support.

③ Third nikkah was to cater to the women's population so that they speak comfortably about these matters.

④ After battle of Uhud, he married 3 women to encourage others to do the same.

⑤ Some were political to make use of the status of in law, which was well respected and at times prevented war.

⑥ To show that marrying a adopted son's wife is allowed he married his slave turned adopted son's (Zaid bin Harith) ex-wife (Zainab binte Zahrah). This emphasizes such restrictions are placed on blood relatives.